



POLICE DEPARTMENT

October 29, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303961 (Incident Date: May 4, 2023) regarding Detective Sean Wolfenhaut, Tax No. 947612 (DADS No. 2024-31763)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303961, pertaining to Detective Sean Wolfenhaut. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Wolfenhaut would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are appropriate. Detective Wolfenhaut, along with members of the U.S. Marshals, entered and searched a location pursuant to an arrest warrant for an individual wanted on multiple homicides. He also left the location without providing a business card to the two individuals who resided therein. Given the facts of this case and taking into account Detective Wolfenhaut's exceptional employment history, running the presumptive penalties concurrent is sufficient to address the misconduct. In addition, Detective Wolfenhaut has no prior formal disciplinary history.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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November 1, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303961 (Incident Date: May 4, 2023) Detective Sean Wolfenhaut,
Tax No. 947612(DADS No. 2024-31763)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and direct the issuance of a Schedule “B” Command Discipline with a forfeiture of ten (10) vacation days concurrent for Specifications One (1) through Four (4). Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, that while you “agree” with the substantiated allegations, you “disagree” that to pursue Charges and Specifications against Detective Wolfenhaut is appropriate and would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

It is undisputed that Detective Wolfenhaut was looking for the subject of the arrest warrant at a third-party residence he *believed* was connected to said subject. It is also undisputed there were no exigent circumstances in the herein matter. New York Criminal Procedure Law § 120.80 states that in order to effect the arrest when in possession of an arrest warrant, the police officer may enter any premises in which he reasonably believes the defendant to be present; *provided, however, that where the premises in which the officer reasonably believes the defendant to be present is the dwelling of a third party who is not the subject of the arrest warrant.* As such, the presumptive penalty for Unlawful Search/Entry Premises (entry involves substantial physical presence and/or remaining on the premises) is Ten (10) vacation days each for the entry of and search of the third-party residence who was not the subject of the arrest warrant.

It also undisputed that Detective Wolfenhaut left the third-party location without providing a business card to the two individuals who resided therein. The presumptive penalty is Three (3) days for each violation. Given the substantial physical presence and remaining on the premises and search in the herein matter, combined with the fear and anxiety the two third-party residents were caused to suffer as a result of Detective Wolfenhaut's actions, CCRB believes the issuance of a Schedule "B" Command Discipline and forfeiture of 10 vacation days to cover all the charges concurrently to be an insufficient penalty for the substantiated misconducts.

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Detective Wolfenhaut in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board

¹In *People v. Square*, 872 N.Y.S.2d 693 (2008), the Court held that the mere expression that one feels aggrieved by the police – even when uttered in a loud voice - cannot constitute a crime.



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New York City Civilian Complaint Review Board
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Re: CCRB Case No. 202303961 (Incident Date: May 4, 2023) regarding Detective Sean Wolfenhaut, Tax No. 947612 (DADS No. 2024-31763)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 1, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Sean Wolfenhaut, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Wolfenhaut for the reasons expressed in my October 29, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline against Detective Wolfenhaut with the forfeiture of ten (10) vacation days for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office